

Shri Rameshwar vs Smt. Gulabi Devi on 20 December, 2018

IN THE COURT OF VISHAL SINGH, ADDITIONAL DISTRICT
JUDGE-06, CENTRAL, TIS HAZARI COURTS, DELHI

RCA No. 61862

IN THE MATTER OF:

1. Shri Rameshwar
S/o. Late Sh. Naval Kishore
R/o. J-4, Balmiki Bara,
Subzi Mandi, Delhi - 110 007.

...APPELLANT

VERSUS

1. Smt. Gulabi Devi
Through her LRs:
Sh. Tara Chand
S/o. Sh. Naval Kishore
R/o. B-20, Timarpur,
MCD QTRS., Delhi - 54.
2. Smt. Maya Devi
W/o. Sh. Prabhu
R/o. QTR No.24,
Delhi Cantt. School,
New Delhi - 110 010.
3. Smt. Kamlesh
W/o. Sh. Mohan Lal
R/o. QTR. No. 857, Gali No.19,
Wazirabad, Delhi.

...RESPONDENTS

Other Details :

Date of Institution	: 04.03.2016
Date of Reserving Judgment	: 05.12.2018
Date of Judgment	: 20.12.2018

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Appeal U/s. 388 (2) Indian Succession Act, 1925, against the
Judgment/Order dated 01/02/2016 of Ld. ACJ, Central, Tis
Hazari Courts in Succession Case No. 231/2002

JUDGMENT

1. Appellant Rameshwar is son of deceased late Sh. Naval Kishore. Appellant is aggrieved by the judgment dated 01/02/2016 passed by Ld. ACJ, Central, vide which succession petition filed by illegitimate children of his father was allowed. The Trial Court held that the objector, his brother Ram Dayal and three petitioners were entitled to 1/5th share each in service benefits, debts and securities of late Sh. Naval Kishore.

2. Succinctly stated, the facts in contention are that initially petitioner Smt. Gulabi sought the grant of Succession Certificate in her favour in respect of debts and securities left by her alleged husband late Sh. Naval Kishore, who expired on 12/09/2001. Objector Rameshwar is son of late Sh. Naval Kishore and his wife Smt. Basanti Devi. He objected that petitioner Smt. Gulabi was neither legally wedded wife nor widow of his father, and was not entitled to the relief sought by her.

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3. Objector Rameshwar pleaded that as per official record of the deceased, who was an employee of MCD, the name of his legally wedded wife was Smt. Basanti Devi, whereas, his nominee was his son Rameshwar i.e. the objector. He stated that his mother Smt. Basanti Devi was also an employee of MCD. She expired on 17/02/1999. The objector averred that his father never resided with petitioner Smt. Gulabi.

4. During the course of proceedings, petitioner Smt. Gulabi expired, whereupon, her three children were substituted as petitioners. Petitioner Smt. Gulabi deposed as PW1. After her death, her son Tara Chand deposed as PW2. Petitioners examined Sh. Rakesh Kumar, LDC, MCD, as PW3 to prove the service record of Smt. Gulabi, as per which the name of her husband was Mr. Naval. PW4 Sh. Balbir Singh, LDC, office of Chief Electoral Officer, Delhi, produced the record of electoral roll in respect of petitioner Smt. Gulabi.

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On the other hand, objector Rameshwar deposed as RW1 in support of his objections. He examined RW2 Radhey Shyam in support of his contention that late Sh. Naval Kishore was not husband of petitioner Smt. Gulabi and never stayed with her.

5. I have heard the arguments from both sides on the grounds of appeal and perused the impugned judgment as well as the evidence adduced by the parties.

6. As a ground of appeal, Ld. Counsel for appellant argued that petitioner had failed to prove that she was legally wedded wife of deceased Naval Kishore, particularly in view of the fact that she admittedly married the deceased before death of his wife Smt. Basanti Devi. He argued that the Trial Court misinterpreted that the objector deposed that petitioners were illegitimately related to his father late Sh. Naval Kishore. He stated that the stand of objector Rameshwar was always that LRs of petitioner Smt. Gulabi Devi were not related legitimately or illegitimately with deceased Naval Kishore.

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7. In reference to the grounds of appeal, Ld. Trial Court observed that succession petitions were to be decided summarily as per mandate of Section 373 Indian Succession Act, 1925. In succession petitions only prima facie case is to be seen, whereas, complicated questions of law and fact are to be decided by regular civil court. The trial court took note of judicial precedent of the case Madhavi Amma Bhawani Amma & Ors. vs. Kunjikutty Pillai Minakshi Pillai & Ors. AIR 2000 SC 2301 in which it was held that "sub sec. (3) of S. 373 of Succession Act which deals with procedure for grant of certificate reveals two things, first adjudication for grant of certificate is summary procedure and secondly if the question of law and fact are intricate or difficult, it could still grant the said certificate based on applicant's prima facie title. In other words, the grant of certificate under it is only a determination of prima facie title. This as a necessary corollary confirms that it is not a final decision between the parties. So, it cannot be construed that mere grant of such certificate or a decision in such proceeding would constitute to be decision on an RCA No. 61862/16 Rameshwar Vs. Smt. Gulabi Devi (Th. LRs) Page No. 5 of 8 issue finally decided between the parties. If that be so the principle of res judicata cannot be made applicable."

8. In the service record of petitioner Smt. Gulabi, the name of her husband was mentioned as Naval and not the full name - Naval Kishore. PW1 Smt. Gulabi admitted in cross examination that deceased had not nominated her in his service record and he resided at Subzi Mandi with objector Rameshwar. On the other hand, deceased Naval Kishore obtained all the retirement benefits of his wife Smt. Basanti Devi. In the service record of the deceased, his wife Smt. Basanti Devi and their children were mentioned as his legal heirs.

9. The Trial Court rightly observed that objector had successfully proved through documentary evidence that his mother late Smt. Basanti Devi was wife of late Sh. Naval Kishore. On the other hand, petitioner Smt. Gulabi Devi failed to establish that she married deceased Naval Kishore as per law, particularly in view of RCA No. 61862/16 Rameshwar Vs. Smt. Gulabi Devi (Th. LRs) Page No. 6 of 8 the fact that she claimed to have married the deceased before death of his legally wedded wife Smt. Basanti Devi, who expired on 17/02/1999.

10. The Trial Court rightly observed that in para no.6 of his affidavit Ex. RW1/A, objector Rameshwar admitted that petitioners were illegitimately related to his father. Conversely, the petitioners established from the documents Ex. PW1/3, Ex. PW1/5 and Ex. PW1/8 that the name of their father was Sh. Naval Kishore from which an inference can be drawn that they were born out of relationship between deceased Naval Kishore and

Smt. Gulabi. Therefore, the trial court invoked Section 16 of The Hindu Marriage Act, 1955, to hold that the petitioners were entitled to share in the debts and securities of the deceased.

11. I find no factual or legal infirmity in the findings of trial court that there was no prima facie impediment to grant of Succession Certificate in favour of all the three petitioners namely RCA No. 61862/16 Rameshwar Vs. Smt. Gulabi Devi (Th. LRs) Page No. 7 of 8 Smt. Maya Devi, Smt. Kamlesh and Sh. Tara Chand, alongwith objector Sh. Rameshwar and his brother Sh. Ram Dayal to the extent of 1/5th share each in the debts and securities of deceased Sh. Naval Kishore.

12. In view of foregoing observations and analysis, the appeal is devoid of merits and is dismissed. The impugned judgment dated 01/02/2016 is confirmed.

13. File be consigned to Record Room as per rules after compliance of necessary legal formalities.

Announced in open Court

Dated: 20.12.2018

VISHAL
SINGH

(Vishal Singh)
Addl. District Judge-06 (Central)
Tis Hazari Courts, Delhi

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